

Form No: HCJD/C-121

ORDER SHEET

IN THE LAHORE HIGH COURT

LAHORE

(JUDICIAL DEPARTMENT)

Writ Petition No.30742 of 2021

National Bank of Pakistan & another **Versus** The State & others

S.No. of order/ proceeding	Date of order/ proceeding.	Order with signatures of Judge, and that of parties or counsel, where necessary.
-------------------------------	-------------------------------	---

21.05.2021	Mr. Khurram Abbas Jafri, Advocate for the petitioners. Mr. Asad Ali Bajwa, Deputy Attorney General for Federation with Mr. Zahid Javed Butt, Assistant Attorney General. Mr. Hafiz Asghar Ali, Deputy Prosecutor General on Court’s call.
------------	--

Instant writ petition has been filed under Article 199 of the Constitution of Pakistan, 1973 (**hereinafter ‘Constitution’**) to challenge the vires of inquiry conducted by Federal Investigating Agency (hereinafter ‘F.I.A’) on the allegations of illegal issuance of loans and money laundering. Primarily it has been prayed that F.I.A. authorities be directed to drop the inquiry against the petitioner bank and its employees on the ground of excess committed by the respondent investigating agency.

2. It was fervidly contended by the learned counsel representing petitioner bank that no illegality had been committed by the bank as due process was followed for issuance of loans. It was further argued that allegation of money laundering is postscript. Further prayed that respondents be restrained from harassing bank employees and also to comply with the mandatory procedural requirements of Section 94 of the Code of Criminal Procedure, 1898 (hereinafter ‘Cr.P.C’) for obtaining the

Bank record of documentation pertaining to issuance of loans in question. Petitioner No. 2 Khadim Hussain, Executive Vice President/Regional Corporate Head, Faisalabad and Multan National Bank of Pakistan is accused against whom inquiry in question is in progress.

3. When learned counsel for the petitioners was confronted with the question of maintainability of instant petition, he submitted that instant petition is competent in every respect as no other efficacious and adequate remedy is available to the petitioners as respondents are transgressing their authority and are harassing the officers of petitioner bank which has badly affected its business and renown. It was argued that section 22-A (6) Cr.P.C. only applies to F.I.A. to the extent of issuance of direction qua the registration of case.

4. While on the other hand, learned law officer refuted all the contentions of the petitioner side with vehemence and asserted that this petition is not maintainable in presence of an adequate alternate remedy u/s 22-A (6) Cr.P.C. by filing a complaint with ex-officio Justice of Peace regarding any alleged misuse or excess of authority by the F.I.A. officials. He further asserted that S. 25 Anti-money Laundering Act, 2010 ousts the operation of S. 94 Cr.P.C. and has an overriding effect being a *non obstante* clause incorporated in the special law which otherwise prevails over general law. Lastly contended that no illegality has been committed by the respondent authority and inquiry in progress is strictly in line with the relevant law.

5. Matter heard in detail.

6. After hearing both the parties, the vital questions, which require consideration in the instant writ petition are whether the term '*Police authorities*' used in section 22-A

(6) Cr.P.C. includes F.I.A. and if it does, whether the judicial review under Article 199 of the Constitution is maintainable.

7. Before dilating upon the maintainability of writ petition in hand, it will be advantageous to have a bird eye view of the powers available to an ex-officio justice of peace under sub-section (6) of Section 22-A Cr.P.C. which was inserted into the statute through the Code of Criminal Procedure (3rd Amendment) Ordinance, 2002 which provides infra:

“22-A (6) an ex-officio justice of peace may issue appropriate directions to the police authorities concerned on a complaint regarding-

(i) non-registration of a criminal case;

(ii) Transfer of investigation from one police officer to another; and

(iii) Neglect, failure or excess committed by a police authority in relation to its functions and duties.”

8. Above reproduced provision of law is self-explanatory and Court does not have a slightest of hesitation to hold that it provides an adequate and efficacious alternative remedy to any person who is aggrieved by the excess committed by the *‘police authorities’*.

9. Now the next crucial question emerging for consideration is whether F.I.A. falls within the expression *‘police authorities’* as used in S. 22-A (6) Cr.P.C. It shall be beneficial to scrutinize few provisions of the Federal Investigation Agency Act, 1974 (hereinafter Act of 1974). F.I.A. was constituted under section 3 of this Act and under section 4 superintendence and administration of agency shall vest in Director General of agency. Section 4 & 5 are reproduced hereinafter for further elaboration:

“4-Superintendence and administration of the Agency:

1. *The Superintendence of the Agency shall vest in the Federal Government.*
2. *The administration of the Agency shall vest in the Director General who shall exercise in respect of the Agency such of the powers of an Inspector General of Police under the Police Act, 1861 (V of 1861), as may be prescribed by rules.*

5- Powers of the members of the Agency:

1. *Subject to any order which the Federal Government may make in this behalf, the members of the Agency shall, for the purpose of an inquiry or investigation under this Act, have throughout Pakistan such powers, including powers relating to search, arrest of persons and seizure of property, and such duties, privileges and liabilities as the officers of a Provincial Police have in relation to the investigation of offences under the Code or any other law for the time being in force.*
2. *Subject to rules, if any, a member of the Agency not below the rank of a Sub-Inspector may, for the purposes of any inquiry or investigation under this Act, exercise any of the powers of an officer-in-charge of a Police Station in any area in which he is for the time being and, when so exercising such powers, shall be deemed to be an officer-in-charge of a Police Station discharging his functions as such within the limits of his station.*
3.
4. **For the purpose of the exercise by the members of the Agency of the powers of an officer-in-charge of a Police Station,” Police Station” includes any place declared, generally or specially, by the Federal Government to be a Police Station within the meaning of the Code.”**

10. Section 4(2) of the Act of 1974 provides that the administration of the Agency shall vest in the Director General who shall exercise, in respect of the Agency, the powers of an Inspector General of Police under the Police Act, 1861. While Section 5(1) in most unequivocal manner provides that the members of the Agency shall, for the purpose of an inquiry or investigation under this Act, have throughout Pakistan such powers, including powers relating to search, arrest of persons and seizure of property, and such duties, privileges and liabilities as the officers of Provincial Police have in relation to the investigation of offences under the Cr.P.C. or any other law for the time being in force. Likewise, section 5(2), for the purpose of any inquiry, empowers a member of the

agency, who is not below the rank of a Sub-Inspector to exercise any of the powers of an officer-in-charge of a Police Station.

11. Therefore, when status, functions, rights, privileges and liabilities of officials of F.I.A. are same as that of Provincial Police officer under the Cr.P.C., ex-officio justice of peace is very much competent to issue directions to the respondents as it can issue to the Provincial police and contention of the learned counsel for the petitioners regarding lack of jurisdiction of ex-officio justice of peace in matters of F.I.A. is not tenable.

12. The term '*police authorities*' used in section 22-A(6) Cr.P.C. is wide enough to include FIA officials and does not only connote provincial police authorities especially when FIA authorities can use all the powers of a police officer of provincial police under the Cr.P.C. There is no quibble that there may be some provisions of Act of 1974, which one may find in direct conflict with the provisions of Cr.P.C. and in that case, being special enactment, provisions of the Act of 1974 shall take precedence but this is not the case in instant *lis* as no provision of the Act of 1974 contradicts the powers of ex-officio justice of peace granted u/s 22-A (6) Cr.P.C. This view is further fortified by the dictum in *Makhdoomzada Syed Mushtaq Hussain Shah's case cited as (PLD 2013 Islamabad 26)*, where Islamabad High Court has vividly held that directions under section 22-A(6) Cr.P.C can be issued to F.I.A. as status of F.I.A. is also of police. Relevant paragraph is reproduced hereunder:

“14. Though by Section 10 of the Act, the Pakistan Special Police Establishment Ordinance, 1948 was repealed on promulgation of Federal Investigation Agency Act, 1974, therefore, there remained no ambiguity to concerned agency (FIA)

and powers exercised by its members as officer Incharge of the Police Station. Therefore, status of the FIA defines as Police Station and Incharge whereof is officer Incharge of the Police Station as Station House Officer, therefore as defined being Police Station and Officer Incharge of the said Police Station. The Ex-Officio Justice of Peace can issue such direction while exercising powers under section 22-A, Cr.P.C., which includes the appropriate direction to the Police Authority concerned. For such purpose FIA, being Agency is a Police Authority comes within such definition.”

13. Same view was taken by this Court in Ch. Abdur Rehman’s case, reported at (2010 MLD 1346) that an aggrieved person can also seek his remedy against F.I.A. by filing complaint before the ex-officio justice of peace. Therefore, an aggrieved person is fully competent to file a complaint u/s 22-A(6) Cr.P.C with the ex-officio justice of peace against any neglect, failure, or excess committed by the F.I.A. authorities and can conveniently get adequate redressal of his grievance from that quasi-judicial forum.

14. Regarding efficacy and adequacy of this alternate remedy, suffice is to say that in view the judicial prescriptions expounded by the august Supreme Court in Dr. Sher Afgan Khan Niazi’s case reported at (2011 SCMR 1813) and by this Court in Mehboob Ali Malik’s case reported at PLD 1963 (W. P.) Lahore 575 to judge the adequacy of an available remedy, filing complaint with an ex-officio justice of peace is very much adequate and efficacious alternate remedy for an aggrieved person, with respect to its nature, extent of relief, point of time of availability of relief and the conditions on which that relief would be available particularly the conditions relating to the expense and inconvenience involved in securing the same.

As it is clearly established that petitioner had an alternate remedy under section 22-A (6) Cr.P.C. and in such like cases, this Court always shows reluctance to encourage the practice to invoke the extra-ordinary writ jurisdiction under Article 199 of the Constitution. It has become more necessary than ever to put a legitimate check on the carefree constitutional petitions under Article 199 of the Constitution, considering the heavy burden of pending cases in the Constitutional Courts. The provisions of Section 22-A (6) Cr.P.C. were made part of the statute book with the object to reduce the burden of this Court by designating Sessions Judges and on their nomination Additional Sessions Judges as ex-officio justice of peace to share the powers of this Court in the matters mentioned in sub-section (6) of section 22-A Cr.P.C. In Syed Zafar Ali Shah's case reported at (2005 MLD 1593), this object was highlighted by this Court in the following words:

“4. Section 22-A, Cr.P.C. was inserted in the Code of Criminal procedure just to lessen the burden on this Court whereby such-like matters ought to be resolved by the Court of first instance by deciding matter.”

Contention of the learned counsel for the petitioners that section 22-A (6) Cr.P.C. is only applicable to the extent of direction to F.I.A. authorities qua the registration of criminal case has no substance as it a cardinal principle of interpretation of statutes that provision of law must be read and applied in *toto* as was held by the august Supreme Court of Pakistan in Mirza Shaukat Baig's Case cited as PLD 2005 SC 530.

It was reiterated in Fazal Dad's case cited as (PLD 2007 SC 571) that:

“It is a settled law that provisions of law must be read as a whole in order to determine its true nature, import and scope as law....”

Same view was taken by a full Bench of this Court in Aziz Ahmad's case reported at 2019 YLR 355, where it was categorically held by this court that:

“...A Statute is to be read and constructed as a whole and the same holistic approach is to be adopted with regard to a particular provision/ section thereof and, thus, a provision cannot be dissected into pieces....”

Although learned law officer has also resisted this petition on merits but it is settled law that once this Court makes-up its mind that in presence of an alternate adequate remedy, relief cannot be granted to a petitioner, Court should refrain itself from commenting upon the merits of the case and should leave this exercise for the competent alternate forum, otherwise no fruitful purpose would be served to send such aggrieved person to that alternate forum. In this regard this Court is enlightened from the decision of august Supreme Court in Khalid Mehmood's case cited as 1999 SCMR 1881, where it was firmly held by the august Supreme Court that:

“To sum up, therefore, the High Court in the circumstances, should have declined to say anything on merits of the dispute and preferred to non-suit the petitioner on the sole ground of maintainability.”

15. To summarize the legal position discussed above, this Court holds:

- i. **Phrase ‘police authority’ as used in section 22-A (6) Cr.P.C, includes FIA officials therefore any neglect, failure or excess committed by them in relation to their functions and duties, can be complained before ex-officio justice of peace.**

- ii. **Remedy provided under section 22-A (6) Cr.P.C is adequate and efficacious in nature, hence constitutional jurisdiction cannot be invoked without exhausting that remedy.**

16. The resultant position that emerges from the discussions in the foregoing paragraphs is that due to availability of an adequate and efficacious alternative remedy under section 22-A (6) Cr.P.C. instant writ petition is not maintainable, hence **dismissed in limini** without touching the merits of the case.

(ALI ZIA BAJWA)
JUDGE

Approved for reporting.

JUDGE